

Chris Thompson v. Samantha Thompson, 25CV-0230

Hearing: Demurrer

Date: August 26, 2026

Chris Thompson (Plaintiff) filed this action against Samantha Thompson (Defendant) on April 14, 2025. On July 9, 2025, Defendant filed her Answer. Defendant filed a demurrer to the complaint on July 23, 2025. The Clerk's office scheduled a hearing on the demurrer for December 17, 2025. The hearing on the demurrer was continued to April 15, 2026 on the basis that Defendant did not file a proof of service showing that notice of the demurrer was provided, which included the hearing information assigned by the Clerk's office at the time of filing. (Cal. Rules of Court, rule 3.1110(b); Local Rule 7.05.1.) Defendant filed a proof of service showing service of the demurrer and the tentative ruling with the continued hearing date.

On January 29, 2026, Plaintiff's counsel filed a motion to be relieved as counsel. After hearing, the motion was granted. (3/4/26 Minutes.) The Court ordered Plaintiff's counsel to provide Plaintiff notice of the Demurrer and to submit the order on the motion to be relieved as counsel. (*Ibid.*)

On April 15, 2026, a hearing was held regarding the demurrer, and the Court continued the matter to August 26, 2026. (4/15/26 Minutes.) In its ruling, the Court noted that Plaintiff's counsel had not submitted the order on the motion to be relieved as counsel and had not provided Plaintiff with notice of the demurrer.

On May 20, 2026, Defense Counsel filed a proof of service showing that notice of the continuance was served on Plaintiff by mail on May 19, 2026. On May 21, 2026, Mr. Arrasmith, Plaintiff's counsel, filed a proof of service stating that the order granting attorney's motion to be relieved as counsel was served on Plaintiff on May 19, 2026.¹ The order relieving Mr. Arrasmith as Plaintiff's counsel was entered on June 12, 2026. No additional proofs of service are currently on file.

Now before the court is Defendant's demurrer. Plaintiff has not filed opposition.

As noted in this Court ruling for the hearing on April 15, 2026, the Court construes the demurrer as a motion for judgment on the pleadings on the basis the demurrer (1) was filed after the answer, and (2) was filed late.²

¹ Since the order relieving Mr. Arrasmith as counsel was entered on June 12, 2026, the proof of service appears to refer to a proposed order.

² When the time to demurrer has passed, a defendant may bring a motion for judgment on the pleadings on the same grounds as a defendant would bring a demurrer. (Code Civ. Proc., § 438, subd. (f)(2).) The Court may construe an untimely demurrer as a motion for judgment on the pleadings. (See Code Civ. Proc., § 438, subd. (b), *Pierson v. Sharp Memorial Hospital, Inc.* (1989) 216 Cal.App.3d 340, 343 [construing order granting motion to strike that challenged claim on ground it did not state facts sufficient to constitute cause of action as granting judgment on the pleadings]; *American Airlines, Inc. v. County of San Mateo* (1996) 12 Cal.4th 1110, 1118

First, a defendant may file a demurrer and answer at the same time. (Code Civ. Proc., § 430.30, subd. (c), 472a, subd. (a); Cal. Civil Procedure Before Trial (Cont.Ed.Bar 4th ed. 2026) § 23.18 [simultaneously filing a demurrer and answer]; 5 Witkin, Cal. Procedure (2026) Pleading, §948 [same].) In this case, Defendant did not file a demurrer and an answer at the same time. Instead, Defendant filed an answer on July 9, 2025, and a demurrer on July 23, 2025.

Second, a “[d]efendant can demur within the same period of time it has to answer the complaint—i.e., 30 days after service, unless extended by stipulation or court order. (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 7:24, citing Code Civ. Proc., 430.40, subd. (a).) Here, Defendant was served on May 22, 2025. Thus, her deadline to demurrer was 30 days after that date, or Monday June 23, 2025.³ Defendant filed the demurrer on July 23, 2025, which is 30 days’ late.

The motion for judgment on the pleadings is granted in part and denied in part.

I. LEGAL STANDARD

A defendant can move for judgment on the pleadings on the grounds that the complaint does not state facts sufficient to constitute a cause of action against that defendant. (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).) A motion for judgment on the pleadings is equivalent to a demurrer and the rules governing demurrers apply; defects must be disclosed on the face of the pleadings or by matters that can be judicially noticed. (See *Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999; *Templo v. State of Calif.* (2018) 24 Cal.App.5th 730, 735.)

In considering a motion for judgment on the pleadings, the court treats the pleadings as admitting all of the material facts properly pleaded, but not any contentions, deductions or conclusions of fact or law contained therein. (*Tarin v. Lind* (2020) 47 Cal.App.5th 395, 403–404.)

II. DISCUSSION

A. First Cause of Action: Breach of Contract

“ ‘[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff. [Citation.]” (*Thrifty Payless, Inc. v. The Americana at Brand, LLC* (2013) 218 Cal App.4th 1230, 1244.)

Defendant argues that the first cause of action on the complaint (1) fails to set forth facts sufficient to allege “the formation of a contract,” (2) contains inconsistent allegations regarding Plaintiff’s

[construing motion for summary judgment as a motion for judgment on the pleadings because time to demurrer had passed].)

³ Thirty days after May 22, 2025, is Saturday, June 21, 2025. However, because the deadline falls on a Saturday, the date is extended to Monday. (See Code Civ. Proc., § 12a, subd. (a).)

performance under the agreement, and (3) fails to identify whether the alleged contract was written, oral or implied by conduct.

Defendant contends that the complaint “contains contradictory allegations regarding the terms of the alleged contract” rendering “it impossible to ascertain which agreement forms the basis of Plaintiff’s breach of contract claim.” (Mot., p. 3, ll. 4, 8-10.) Defendant explains that the complaint identifies three different agreements: “(1) an agreement that Defendant would accept only the Subaru and no monetary payment; (2) a subsequent agreement that Defendant would accept the Subaru plus \$30,000; and (3) a final arrangement where Defendant allegedly received approximately \$80,000.” (*Id.*, ll. 6-8, see Cmp., ¶ 17.)

The Court agrees that the complaint contains contradictory allegations regarding the terms of the agreement. The first cause of action alleges the agreement occurred after Plaintiff and Defendant’s separation. (Cmp., ¶ 19.) The complaint alleges “[t]he agreement specified a \$30,000 buyout payment from Plaintiff to Defendant and required the transfer of the Subaru Outback in good condition.” (*Ibid.*) However, the complaint elsewhere alleges “Defendant made and breached multiple agreements.” (*Id.*, ¶ 17), and those allegations describe differing terms, including inconsistent allegations as to who would keep the Subaru Outback.

Defendant also argues that Plaintiff does not allege whether the purported agreement was written, oral or implied by conduct. The Court agrees the complaint does not specify the nature of the contract. “[T]he complaint must indicate on its face whether the contract is written, oral, or implied by conduct.” (*Otworth v. Southern Pacific Transportation Company* (1985) 166 Cal.App.3d 452, 458–59, citing Code Civ.Proc., § 430.10, subd. (g).)

Defendant next contends the complaint contains contradictory allegations regarding Plaintiff’s performance. Defendant points out that while paragraph 19⁴ of the complaint alleges that “Plaintiff performed all conditions required under the agreement” it also alleges facts indicating Plaintiff provided only \$12,000 of an alleged \$30,000 payment obligation. (See *Id.*, ¶¶ 17, 20.)

“In a breach of contract suit, plaintiff normally may allege plaintiff’s performance in general terms (‘Plaintiff duly performed all conditions on his part’). But ‘a general allegation of due performance will not suffice if the plaintiff also sets forth what has actually occurred and such specific facts do *not* constitute due performance.’ [*Carreau & Co. v. Security Pac. Business Credit, Inc.* (1990) 222 CA3d 1371, 1390...]” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 6:246.)

The Court disagrees that these allegations are inconsistent. Paragraph 17 does not allege that only \$12,000 was paid toward the agreement but that “Defendant refused to acknowledge this payment [\$12,000] and, through her counsel, ultimately demanded and obtained approximately \$80,000 from Plaintiff, far exceeding any previously agreed-upon amount.” (Cmp., ¶ 17.) Read together and in the light most favorable to Plaintiff, these allegations are not contradictory. (*Perez v. Golden Empire Transit Dist.* (2012) 209 Cal.App.4th 1228, 1239 [When reviewing a demurrer, the court

⁴ The subject language is found at paragraph 20 of the complaint.

must draw all reasonable inferences in favor of the plaintiff, not the defendant[.]

Accordingly, the motion for judgment on the pleadings is granted with leave to amend, as to the first cause of action because the complaint does not sufficiently plead the existence and terms of a contract.

B. Second Cause of Action: Conversion

The essential elements to state a conversion claim are: (1) the plaintiff's ownership or right to possession of the property at the time of conversion; (2) the defendant's conversion by a wrongful act or disposition of property rights; and (3) damages. (*Shopoff & Cavallo LLP v. Hyon* (2008) 167 Cal.App.4th 1489, 1507.)

Defendant contends that Plaintiff's conversion claim is deficient because it does not allege a "specific, identifiable sum of money." (Mot., p. 4., l. 4.) Defendant explains that while the complaint alleges that Defendant made transfers exceeding \$30,000 without authorization, the conversion claim fails because the complaint does not plead the "the exact amounts allegedly converted, when each conversion occurred, and from which specific accounts the funds were taken." (*Id.*, ll. 7-9.) Defendant cites *Grief v. Sanin* (2022) 74 Cal.App.5th 412 to support the argument that the complaint must allege a specific sum of money. (See Mot., p. 4, l. 10.)⁵

The Court agrees that to the extent the conversion claim is premised on money transfers, it is not adequately pleaded. "When money is the subject of conversion, the plaintiff must plead that a specific identifiable sum was taken." (5 Witkin, California Procedure (6th ed. 2026) Conversion § 698, citing *Vu v. California Commerce Club* (1997) 58 Cal.App.4th 229, 235; 5 Witkin, Summary of Cal. Law (11th ed. 2026) Torts, § 815.) Allegations of unspecified transfers "over \$30,000," without identifying the particular sums allegedly converted, are insufficient.

However, the second cause of action also alleges two other theories of conversion involving Plaintiff's personal computer and the Subaru Outback. Aside from the arguments challenging the transfer of money, Defendant's motion addresses only the alleged money transfers and does not challenge these other bases for conversion. Accordingly, the motion as to the second cause of action is denied on that basis. "A demurrer does not lie to a portion of a cause of action. [Citation.]" (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683 [if there are several grounds for liability, the viability of one is sufficient to survive demurrer].)

C. Third Cause of Action: Intentional Infliction of Emotional Distress

Defendant argues that Plaintiff fails to state sufficient facts to support an Intentional Infliction of Emotional Distress (IIED) claim.

"The tort of intentional infliction of emotional distress is comprised of three elements: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the

⁵ Defendant also cites "Hefnaw v. Teebi, 2024", but provides no citation or case information, and the Court is unable to locate any published authority by that name.

probability of causing, emotional distress; (2) the plaintiff suffered severe or extreme emotional distress; and (3) the plaintiff's injuries were actually and proximately caused by the defendant's outrageous conduct. [Citation.]” (*Cochran v. Cochran* (1998) 65 Cal.App.4th 488, 494.)

“It is not enough that the conduct be intentional and outrageous. It must be conduct directed at the plaintiff or occur in the presence of a plaintiff of whom the defendant is aware.” (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.) “The requirement that the defendant's conduct be directed primarily at the plaintiff is a factor which distinguishes intentional infliction of emotional distress from the negligent infliction of such injury.” (*Id.*, at p. 904.)

Defendant contends that the alleged conduct “is not sufficiently extreme and outrageous” for an intentional infliction of emotional distress claim. Defendant argues that “[t]he Complaint alleges financial misconduct, property damage, and manipulation of family relationships, but these allegations, even if true, do not constitute conduct that exceeds all bounds of decency in a civilized society as required for an IIED claim.” (Mot., p. 5, ll. 1-3.) The Court has reviewed the allegations set forth in the complaint and finds that the complaint does not sufficiently allege extreme and outrageous conduct by the defendant.

The motion as to the third cause of action is granted with leave to amend.

D. Fourth Cause of Action: Fraud and Deceit

The elements of a fraud cause of action include: (1) misrepresentation (false representation, concealment, or nondisclosure), (2) knowledge of falsity, (3) intent to defraud, (4) justifiable reliance, and (5) resulting damages. (*Lazar v. Sup. Ct.* (1996) 12 Cal.4th 631, 638.) “Although the elements of the tort cause of action for damages for deceit have been listed in various ways, the authorities agree on the following essential allegations: (a) representation (*infra*, § 715 et seq.); (b) falsity (*infra*, § 720 et seq.); (c) knowledge of falsity (*infra*, §§ 723, 724); (d) intent to deceive (*infra*, §§ 725, 726); and (e) reliance and resulting damage (causation) (*infra*, § 727 et seq.).” (5 Witkin, California Procedure (6th ed. 2026) Pleading, § 706.)

These elements must be pled with factual particularity, showing “how, when, where, to whom, and by what means” the representations were made. (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73, quoting *Hill Trans. Co. v. Southwest* (1968) 266 Cal.App.2d 702, 707.) General and conclusory allegations do not suffice. (*Lazar, supra*, 12 Cal.4th at 645.)

The fourth cause of action for fraud and deceit identifies several alleged misrepresentations including that Defendant falsely promised to close a joint Chase account, she repeatedly assured Plaintiff that she would honor their \$30,000 buyout agreement for the Los Osos property, misstated to Plaintiff the amount that was owed to their daughter, and falsely claimed that Defendant would remove herself from Plaintiff's credit union account. (Cmp., ¶ 33.)

Defendant contends that Plaintiff fails to allege facts sufficiently to state a cause of action for fraud and deceit. Defendant argues that “while the Complaint alleges various misrepresentations, it fails to allege with particularity the time, place and specific content of the alleged false representations, as well as the identities of the parties to the misrepresentations.” (Mot., p. 6, ll. 4-7.)

The Court agrees. The complaint does not plead the alleged misrepresentations with sufficient detail to identify the “who, what, when, where, and how” of any actionable misrepresentation. For example, as to the alleged promise to close the joint Chase account, the complaint does not allege when or where the promise was made, how it was communicated, or the specific circumstances of the statement, nor does it state facts as to the remaining elements of fraud for that misstatement with the required particularity.

The Court finds that Plaintiff has not adequately pled the elements of a fraud and deceit cause of action and the motion for judgment on the pleadings will be granted with leave to amend as to the fourth cause of action.

ORDER

For the foregoing reasons, the motion for judgment on the pleadings is granted in part and denied in part.

The motion is granted with leave to amend as to Plaintiff’s first, third, and fourth causes of action.

The motion is denied as to Plaintiff’s second cause of action.

Defendant is directed to serve the notice of ruling. (Code Civ. Proc., § 1019.5., subd. (a).)